

answer by June 29. The Court does not know if defendant tried to contact plaintiff's counsel to ask for a stipulation, but this should have been handled by stipulation.

16. 9:00 AM CASE NUMBER: C25-03224
CASE NAME: SHOPS AT TODOS SANTOS, LLC VS. EDWIN TIU
HEARING IN RE: MOTION TO SET ASIDE DEFAULT
FILED BY:

TENTATIVE RULING:

This is a rent collection action for restaurant premises. Defendant Thomas Phu is in default, but moves pro per to vacate the default. The motion is unopposed, and it is **granted**. Tran may file and serve his answer by June 29. The Court does not know if defendant tried to contact plaintiff's counsel to ask for a stipulation, but this should have been handled by stipulation.

17. 9:00 AM CASE NUMBER: C26-00382
CASE NAME: GIOVANNI BIASIN VS. NISSAN NORTH AMERICA INC., A CORPORATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NISSAN NORTH AMERICA INC., A CORPORATION

TENTATIVE RULING:

This demurrer was **withdrawn** in light of plaintiff's voluntary dismissal of the challenged cause of action.

18. 9:00 AM CASE NUMBER: MSC19-01228
CASE NAME: KENZIE CONSULTING VS CUNNINGHAM
***HEARING ON MOTION IN RE: SET ASIDE JUDGMENT ENTERED AGAINST DEFENDANTS**

FILED BY: CUNNINGHAM, HART PEARSON

TENTATIVE RULING:

Judgment for plaintiffs was entered in 2023 after defendants' answers and cross-complaint were stricken for repeated failures to appear and disobedience of an order to mediate. Defendants now move to vacate the dismissal and judgment. The motion is **denied**.

Background and Course of Litigation

Plaintiff Tierney and his related consulting business filed this suit in June 2019, to collect amounts due for various professional and business services provided to Cunningham and his affiliated businesses. All defendants were served in July 2019, through personal service on Cunningham at his residence in Haiku, Hawaii.

In November 2019, the Court denied defendants' motion to dismiss for lack of personal jurisdiction and forum non conveniens. Thereafter defendants answered the complaint, and Cunningham personally cross-complained against plaintiffs for breach of a confidentiality agreement and conversion of business opportunities. He amended his cross-complaint further in November 2020,